

TENTATIVE RULING

Case: **Barker v. Linaweaver**
Case No. CV2024-2810

Hearing Date: **August 3, 2026** **Department Fourteen** **9:00 a.m.**

Motion for leave to engage in discovery:

The Court declines to rule on defendants Raymond Scott Linaweaver and Nicole Jeanette Linaweaver's evidentiary objections to the declaration of Carmela Caramagno and supporting exhibits because the Court did not rely on evidence objected to in determining the motion.

Plaintiffs Alissa Barker and Bradyn O'Connor's motion for leave to engage in discovery regarding defendants' financial condition is **DENIED**. (Civ. Code, § 3295, subd. (c).) "[A]ny party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day... before the date initially set for the trial of the action." (Code Civ. Proc., § 2024.020, subd. (a).) Trial is set for August 24, 2026, requiring fact discovery to be completed on or before July 24, 2026. (*Ibid.*) On the motion of any party, this Court has not granted "leave to complete discovery proceedings...or to reopen discovery" – nor is any such motion pending. (Code Civ. Proc., § 2024.050, subd. (a); see also *Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.* (2008) 165 Cal.App.4th 1568, 1586–1588.) Accordingly, this Court cannot consider whether to permit plaintiffs to obtain evidence regarding defendants' financial condition. (See Civ. Code, § 3295, subd. (c).) Plaintiffs are not prejudiced by this ruling, given that section 3295(c) provides the power of trial subpoena over the discovery of defendants' financial condition. The fact that plaintiffs made a pre-trial motion may be considered prior to the punitive damage phase of the trial and the ruling on production related to any subpoena that is issued for trial.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for leave:

Plaintiffs' unopposed motion for leave to file second amended complaint is **GRANTED**. (Code Civ. Proc., §§ 473, 576; Cal. Rules of Court, rule 3.1324; Caramagno decl., ¶¶ 2-11, Exhibits A & B.) The proposed second amended complaint, attached as Exhibit A to the declaration of Carmela Caramagno, is deemed filed as of the hearing date. Also, the Court deems defendants' answer to the first amended complaint, filed March 14, 2025, the answer to the second amended complaint.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion in support of request for judicial notice:

Plaintiffs' unopposed motion in support of request for judicial notice of documents and filings in *Linaweaver v. Barker et al.* (Case No. CV2023-1835) is **DENIED WITHOUT PREJUDICE**. (Evid. Code, §§ 452, 453.) "Any matter to be judicially noticed must be relevant to a material

issue.” (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825.) As the Court is denying plaintiffs’ motion for leave to engage in discovery on procedural grounds, plaintiffs’ request is not relevant to the disposition of this motion. (*Ibid.*) Further, it is unclear for what other purpose plaintiffs are requesting the Court take judicial notice of the court file, records, pleadings, and filings in Case No. CV2023-1835. (See *ibid.*; Motion, p. 6.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Trial readiness conference:

Parties are **DIRECTED TO APPEAR** for the trial readiness conference.

TENTATIVE RULING

Case: **Bryte Avenue Associates, L.P. v. Mondragon**
Case No. CV2026-2066

Hearing Date: **August 3, 2026** **Department Two** **1:30 p.m.**

Defendants Alicia Mondragon and Terry Guilford's unopposed demurrer to plaintiff Bryte Avenue Associates, L.P.'s complaint for unlawful detainer based on defective notice is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e), 1161; Civ. Code § 1946.2, subd. (c).) Although defendants argue that plaintiff's notice did not give defendants the opportunity to cure the breach under Code of Civil Procedure section 1161(3), the notice attached to the complaint is based on the failure to pay rent under subdivision (2) of section 1161. (Complaint, ¶ 6, Exhibit A.) Further, defendants fail to establish that, based on the face of the pleading or from matters judicially noticeable, Civil Code section 1946.2 subdivision (c) applies to their tenancy.

Defendants' demurrer to plaintiff's complaint for unlawful detainer based on failure to state facts sufficient to constitute a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have not shown that plaintiff's complaint does not state a cause of action for unlawful detainer. (See, e.g., *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; see also Complaint, ¶ 6, Exhibit A.)

Defendants' demurrer to plaintiff's complaint for unlawful detainer based on uncertainty is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) The complaint is not unclear such that defendants cannot reasonably respond. (See *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Defendants Alicia Mondragon and Terry Guilford shall file their answer(s) no later than **August 10, 2026**. (Cal. Rules of Court, rule 3.1320(g), 1.10(a).)

The notice of demurrer does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for demurring party, or the demurring party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.